

Weapon of VENGEANCE

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False cases under the Dowry Prohibition Act are not only filling up jails with innocent people but are also driving warring families to social and financial ruin

By Subhash Mishra

Marriage, dowry, relationships, family, marital discord: it's a potent mix of human emotions and failings and nowhere is this more in evidence than in the misuse of the Dowry Prohibition Act (DPA). An incredible 9,000 husbands and their relatives (10 per cent of the total jail population) are languishing in Uttar Pradesh prisons under the provisions of the Act. Parents of estranged brides are increasingly lodging cases against

their in-laws under the Act to "punish the husbands" and to also conceal the actual cause of the dispute between the couple. "After murder cases, if there is any other crime sending the greatest number of people to jail, it is the Dowry Prohibition Act," says senior IPS officer and Inspector General of UP Jails Sulkhan Singh. What that proves is that an Act meant to protect victims of dowry has become a weapon of vengeance and a mockery of the judicial system.

Indraneil Bhattacharya, a senior executive in a Lucknow-based pri-

vate company, was married to Mausami Chatterji in 2002 and within five months their relations deteriorated. But they sustained their togetherness and had two children by 2008. "I requested her not to spend too much money on herself but she refused and finally filed a case under DPA as revenge," says Indraneil. "We have lost all our money in courts and police stations. Mausami and her kin have driven us out of our house. My parents, who had built the house with their hard-earned money, are now living in a rented house," recalls Indraneil, who is now socially ostracised and economically broken. The Act has caused so much trauma that Pushkar Singh, a teacher, even ended his life. Implicated under the Act, Singh was sent to jail for four